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RESOLUTION NO. _____

Entitled: "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A LOAN FROM THE WYOMING DRINKING WATER STATE REVOLVING FUND FOR PHASE III OF THE SOUTHERN WATER TRANSMISSION MAIN PROJECT IN THE AMOUNT OF \$5,280,000 AND AUTHORIZING THE MAYOR, THE CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO EXECUTE THE APPLICATION AND ALL RELATED DOCUMENTS."

WHEREAS, Wyoming Statute 15-7-401 provides for a Board of Public Utilities (BOARD) to manage, operate, maintain and control municipal waterworks, a sanitary sewer system and sewage disposal plants; and

WHEREAS, Cheyenne City Code, Section 2.68.010, established such a BOARD to have exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities; and

WHEREAS, the 2003 and 2013 Water and Wastewater Master Plans recommend improvements to Cheyenne's water system by constructing a water main to serve the southern area of Cheyenne and to help relieve stress and demand on Cheyenne's northern water transmission mains; and

WHEREAS, the City of Cheyenne and the BOARD recognize the 2003 and 2013 Water and Wastewater Master Plans as essential planning tools and the necessity for Phase III of the Southern Water Transmission Main Project (PROJECT); and

WHEREAS, primary purposes of the Southern Water Transmission Main Project include, but are not limited to:

- Provide redundancy for and supplement water flows to the City's southern area which are now provided almost entirely from an existing 30-inch water transmission main that is over 40 years old; and
- Provide relief to Cheyenne's three water transmission mains that feed water from the Round Top treated water storage reservoir; and
- Meet current demands for treated water in the City's southern area; and

WHEREAS, the PROJECT cost estimate for engineering, construction and related administrative and miscellaneous costs is \$16,000,000; and

WHEREAS, the PROJECT meets the criteria and is eligible for a loan from the Wyoming Drinking Water State Revolving Fund in the amount of \$5,280,000, thirty three percent (33%) of the estimated PROJECT costs for construction and other related costs; and

WHEREAS, a loan from the Wyoming Drinking Water State Revolving Fund is subject to a loan origination fee of 0.5 percent, which is estimated to be \$26,400.00; and

WHEREAS, the City of Cheyenne and the BOARD recognize that the annual principal and interest payment on the proposed loan

will be approximately \$338,696.84, assuming a loan term of 20 years at 2.5%; and

WHEREAS, a loan for this PROJECT from the Wyoming Drinking Water State Revolving Fund is eligible for and may be granted up to twenty-five percent principal forgiveness, which is estimated to be \$1,320,000.00; and

WHEREAS, the BOARD and the Governing Body of the City of Cheyenne are committed to repaying the loan from revenue from the Water Enterprise Fund; and

WHEREAS, the City of Cheyenne and the BOARD will submit an application to the Wyoming Water Development Commission for Level III grant funding in the amount of \$10,720,000, for sixty seven (67%) of the estimated and other related costs for construction; and

WHEREAS, the City of Cheyenne and the BOARD recognize that the PROJECT is necessary and that it is essential to maintain adequate supplies of safe drinking water to the community of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, that an application be submitted to the State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund in the amount of \$5,280,000 for estimated construction costs and other miscellaneous related costs for Phase III of the Southern Water Transmission Main Project for the City of Cheyenne; and

BE IT FURTHER RESOLVED, that the Mayor, the City Clerk and the Director of the Board of Public Utilities are hereby designated as the authorized representatives of the City of Cheyenne to act on behalf of the City of Cheyenne in all matters related to this application and related documents, including any amendments to the PROJECT documents.

PRESENTED, READ AND ADOPTED this ____ day of _____, 2015.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

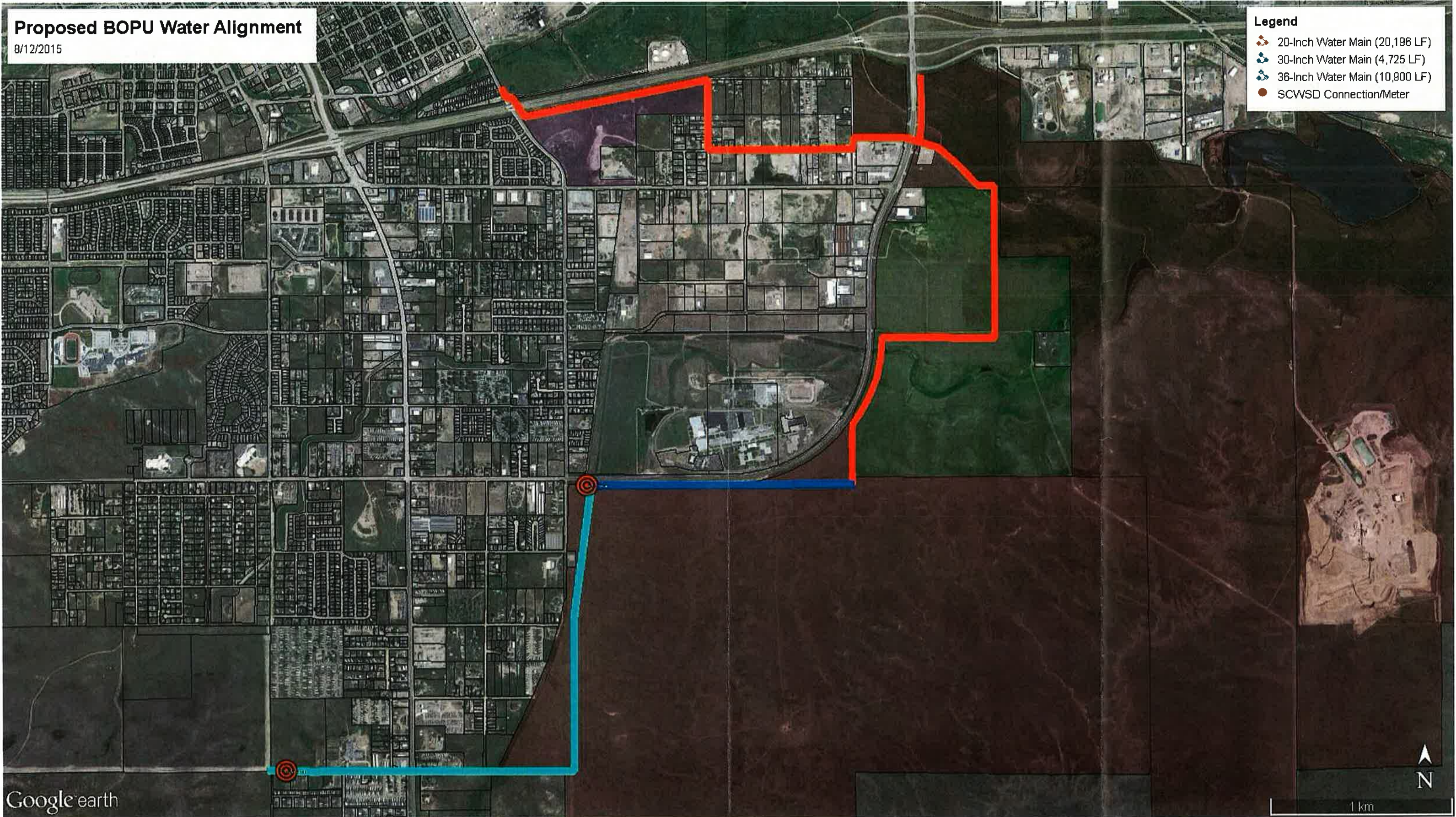
Carol Intlekofer, City Clerk

Proposed BOPU Water Alignment

8/12/2015

Legend

- 20-Inch Water Main (20,196 LF)
- 30-Inch Water Main (4,725 LF)
- 36-Inch Water Main (10,900 LF)
- SCWSD Connection/Meter



BOPU RESOLUTION NO. 2015-10

Entitled: "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A LOAN FROM THE WYOMING DRINKING WATER STATE REVOLVING FUND FOR PHASE III OF THE SOUTHERN WATER TRANSMISSION MAIN PROJECT IN THE AMOUNT OF \$5,280,000 AND AUTHORIZING THE BOARD DIRECTOR TO EXECUTE THE APPLICATION AND ALL RELATED DOCUMENTS."

WHEREAS, Wyoming Statute 15-7-401 provides for a Board of Public Utilities (BOARD) to manage, operate, maintain and control municipal waterworks, a sanitary sewer system and sewage disposal plants; and

WHEREAS, Cheyenne City Code, Section 2.68.010, established such a BOARD to have exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities; and

WHEREAS, the 2003 and 2013 Water and Wastewater Master Plans recommend improvements to Cheyenne's water system by constructing a water main to serve the southern area of Cheyenne and to help relieve stress and demand on Cheyenne's northern water transmission mains; and

WHEREAS, the BOARD recognizes the 2003 and 2013 Water and Wastewater Master Plans as essential planning tools and the necessity for Phase III of the Southern Water Transmission Main Project (PROJECT); and

WHEREAS, primary purposes of the Southern Water Transmission Main Project include, but are not limited to:

- Provide redundancy for and supplement water flows to the City's southern area which are now provided almost entirely from an existing 30-inch water transmission main that is over 40 years old; and
- Provide relief to Cheyenne's three water transmission mains that feed water from the Round Top treated water storage reservoir; and
- Meet current demands for treated water in the City's southern area; and

WHEREAS, the PROJECT cost estimate for engineering, construction and related administrative and miscellaneous costs is \$16,000,000; and

WHEREAS, the PROJECT meets the criteria and is eligible for a loan from the Wyoming Drinking Water State Revolving Fund in the amount of \$5,280,000, thirty three percent (33%) of the estimated PROJECT costs for construction and other related costs; and

WHEREAS, a loan from the Wyoming Drinking Water State Revolving Fund is subject to a loan origination fee of 0.5 percent, which is estimated to be 26,400.00; and

WHEREAS, the BOARD recognizes that the annual principal and interest payment on the proposed loan will be approximately \$338,696.84, assuming a loan term of 20 years at 2.5%; and

WHEREAS, a loan for this PROJECT from the Wyoming Drinking Water State Revolving Fund is eligible for and may be granted up to twenty-five percent principle forgiveness, which is estimated to be \$1,320,000.00; and

WHEREAS, the BOARD and the Governing Body of the City of Cheyenne are committed to repaying the loan from revenue from the Water Enterprise Fund; and

WHEREAS, the BOARD plans to submit an application to the Wyoming Water Development Commission for Level III grant funding in the amount of \$10,720,000, for sixty seven (67%) of the estimated and other related costs for construction; and

WHEREAS, the BOARD recognizes that the PROJECT is necessary and that it is essential to maintain adequate supplies of safe drinking water to the community of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE, that an application be submitted to the State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund in the amount of \$5,280,000 for estimated construction costs and other miscellaneous related costs for Phase III of the Southern Water Transmission Main Project for the City of Cheyenne; and

BE IT FURTHER RESOLVED, that the Director is hereby designated as the authorized representative of the Board of Public Utilities and to act on behalf of the BOARD in all matters related to this application and related documents, including any amendments to the PROJECT documents.

PRESENTED, READ AND ADOPTED this 17 day of August, 2015.

BOARD OF PUBLIC UTILITIES

BY:



Joe Bonds, President

(SEAL)

ATTEST:



Brad Oberg, Secretary